

FIRST ENDORSEMENT

Chief Prosecutor APU, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman, Department Advocate's Office, March 27, 2025. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2024-30738 against Police Officer Giancarlo Pineda, Tax Registry No. 962694. This case was conferenced on March 20, 2025, before Assistant Deputy Commissioner of Trials, Vanessa Facio-Lince, who approved the negotiated penalty of a Command Discipline Schedule B and the forfeiture of ten (10) vacation days. Charges and Specifications will be dismissed for plea purposes.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor APU
New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

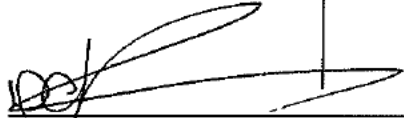
PD 468-142 (Rev. 8-89)-2

CASE NO. C-031003
BOOK & PAGE NO. Page 1 of 3
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, PINEDA	FIRST GIANCARLO	M.I.	COMMAND 102
SHIELD NO. 23274	TAX REGISTRY NO. 962694	SOCIAL SECURITY NO.	DATE APPOINTED 10/11/2016	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer GIANCARLO PINEDA, on or about January 13, 2023, at approximately 2156, while assigned to 102 PCT and on duty, in the vicinity of Northwest corner of § 87(2)(b) Queens County, wrongfully used force, in that he tased § 87(2)(b) uncontrollably and negligently.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated.
2. Police Officer Giancarlo Pineda, on or about January 13, 2023, at approximately 2156, while assigned to 102 PCT and on duty, in the vicinity of Northwest corner of § 87(2)(b) Queens County, wrongfully used force, in that he tased § 87(2)(b) uncontrollably and negligently.	DISMISSED	VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
3. Police Officer GIANCARLO PINEDA, on or about January 13, 2023, at approximately 2156, while assigned to 102 PCT and on duty, in the vicinity of Northwest corner of § 87(2)(b) Queens County, wrongfully used force, in that he tased § 87(2)(b) uncontrollably and negligently.	DISMISSED	


FIRST DEPUTY COMMISSIONER

6/8/25
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
- ☐ Disapproved
- ☐ Other Action (Describe)


POLICE COMMISSIONER

7/11/25
DATE

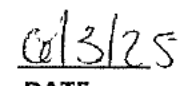
**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO. C-031003
BOOK & PAGE NO. Page 2 of 3
PERSONNEL ORDER NO.

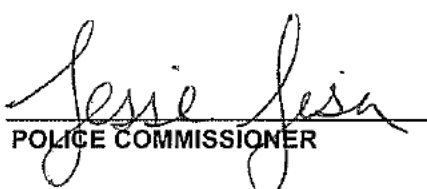
RANK/TITLE PO	SURNAME, PINEDA	FIRST GIANCARLO	M.I.	COMMAND 102
SHIELD NO. 23274	TAX REGISTRY NO. 962694	SOCIAL SECURITY NO.	DATE APPOINTED 10/11/2016	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
4. Police Officer Giancarlo Pineda, on or about January 13, 2023, at approximately 2156, while assigned to 102 PCT and on duty, in the vicinity of Northwest corner of § 87(2)(b) Queens County, wrongfully used force, in that he tased § 87(2)(b) uncontrollably and negligently.	DISMISSED	
5. Police Officer Giancarlo Pineda, on or about January 13, 2023, at approximately 2156, while assigned to 102 PCT and on duty, in the vicinity of Northwest corner of § 87(2)(b) Queens County, wrongfully used force, in that he tased § 87(2)(b) uncontrollably and negligently.	DISMISSED	
6. Police Officer Giancarlo Pineda, on or about January 13, 2023, at approximately 2156, while assigned to 102 PCT and on duty, in the vicinity of Northwest corner of § 87(2)(b) Queens County, wrongfully used force, in that he tased § 87(2)(b) uncontrollably and negligently.	DISMISSED	
 FIRST DEPUTY COMMISSIONER		 DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
- ☐ Disapproved
- ☐ Other Action (Describe)


POLICE COMMISSIONER
DATE

**DISPOSITION OF CHARGES**

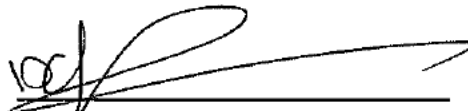
PD 468-142 (Rev. 8-89)-2

CASE NO. C-031003
BOOK & PAGE NO. Page 3 of 3
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, PINEDA	FIRST GIANCARLO	M.I.	COMMAND 102
SHIELD NO. 23274	TAX REGISTRY NO. 962694	SOCIAL SECURITY NO.	DATE APPOINTED 10/11/2016	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
7. Police Officer Giancarlo Pineda, on or about January 13, 2023, at approximately 2156, while assigned to 102 PCT and on duty, in the vicinity of Northwest corner of § 87(2)(b) Queens County, wrongfully used force, in that he tased § 87(2)(b) uncontrollably and negligently.	DISMISSED	


FIRST DEPUTY COMMISSIONER

6/3/25
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)


POLICE COMMISSIONER

7/11/25
DATE

THIRD ENDORSEMENT

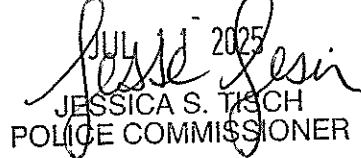
First Deputy Commissioner to Police Commissioner, June 3, 2025. Contents noted. I reviewed the negotiated plea in PODS Case No. C-031003 (Disciplinary Case No. 2024-30738; CCRB Case No. 202300828) against Police Officer Giancarlo Pineda, Tax No. 962694, with the recommendation that the Charges and Specifications against Police Officer Pineda be dismissed and that Police Officer Pineda receive a Schedule "B" Command Discipline and forfeit ten (10) vacation days as the disciplinary penalty. Assistant Deputy Commissioner, Trials Vanessa Facio-Lince reviewed this matter and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**



FIRST DEPUTY COMMISSIONER

TIK/pk

APPROVED



JUL 1 2025
JESSICA S. TISCH
POLICE COMMISSIONER